

NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement ("Agreement") is made effective from 11 September 2019 ("Effective Date") between **PricewaterhouseCoopers Bangladesh Private Limited**, having registration no. C-123560/15, and having its registered office at 11th Floor of Laila Towers, 8 Gulshan Avenue, Gulshan-1, Dhaka-1212 ("PwC"); and **SECUPENT** whose registered office is at 679, West Kazipara, Mirpur-2, Dhaka-1216 ("SECUPENT"/"You").

(You and PwC shall be individually referred to hereinafter as "party" and collectively as "parties").

Background

SECUPENT and PwC are working together in connection with WebTrust certification assessment for CCA, Root CA and other Sub CAs in Bangladesh and other cyber security assessment (the "Purpose").

You are considering appointing PwC as your advisor for rendering certain WebTrust certification assessment for CCA, Root CA and other Sub CAs in Bangladesh and other cyber security assessment in connection with the Purpose; if PwC is so appointed, the parties shall subsequently execute a contract in connection thereto ("Service Agreement").

In connection with the Purpose, it will be necessary for certain confidential information to be disclosed between the parties. You and PwC agree that the following terms and conditions shall apply when one party discloses confidential information to the other party under this Agreement. The objective of this Agreement is to provide appropriate protection for such information whilst maintaining the parties' ability to conduct their respective businesses.

1. Definitions

In this Agreement the following terms shall have the following meanings:

"Affiliate" means any entity which from time to time controls, is controlled by or is under common control with the relevant party, where control means having the ability (including without limitation by means of a majority of voting rights or the right to appoint or remove a majority of the board of directors) to control the management and policies of an entity.

"Confidential Information" means any information disclosed by or on behalf of one party (or its Affiliates or, in case of PwC, other PricewaterhouseCoopers Firms) to the other party, which (i) if disclosed in tangible form is marked confidential or (ii) if disclosed otherwise than in tangible form is confirmed in writing as being confidential or (iii) if disclosed in tangible form or otherwise, is manifestly confidential.

"Disclosing Party" means the party to this Agreement disclosing the Confidential Information.

"PricewaterhouseCoopers Firm (s)" means any entity (whether or not incorporated) which carries on business under a name which includes all or part of the PricewaterhouseCoopers name or is otherwise within (or associated or connected with an entity within) or is a correspondent firm of the world-wide network of PricewaterhouseCoopers firms.

"Receiving Party" means the party to this Agreement to whom the Confidential Information is disclosed.

2 Supply and Use of Information

2.1 In consideration of the disclosures contemplated by, and of the respective obligations set out in, this Agreement, the Receiving Party agrees, save as otherwise expressly permitted by this Agreement:

2.1.1 to keep the Disclosing Party's Confidential Information, confidential;

2.1.2 not to use the Disclosing Party's Confidential Information except in connection with the Purpose; and

2.1.3 not to disclose the Disclosing Party's Confidential Information to any third party.

2.2 In the case of Confidential Information that is disclosed only orally, the Disclosing Party shall, within seven days after such disclosure, deliver to the Receiving Party a brief written description of such Confidential Information; identifying the place and date of such oral disclosure and the names of the representatives of

PwC 

Secupent 

the Receiving Party to whom such disclosure was made. It is expected that such information will bear a legend or label of "Confidential" or other similar designation manifesting intent that the information is confidential.

- 2.3 Each party confirms that it and its Affiliates (or, in case of PwC, other PricewaterhouseCoopers Firms) have the right to disclose any Confidential Information that they provide to the other under this Agreement.
- 2.4 You confirm that the Confidential Information to be shared by you with PwC, shall primarily be known only to any one or more of the levels, within your organization, as indicated below:-
 - 2.4.1 Senior Management i.e. Board of Directors to Vice Presidents;
 - 2.4.2 Middle Management i.e. General Managers to Managers; and
 - 2.4.3 Junior Management i.e. Assistant Managers and below.

3 Confidentiality

- 3.1 It is hereby agreed that the discretion applied at the time of disclosure would provide the best protection of Confidential Information of either party. Accordingly, the Disclosing Party shall ensure that only such Confidential Information which serves the Purpose shall be disclosed to the Receiving Party.
- 3.2 The Receiving Party shall protect the Confidential Information of the Disclosing Party through the exercise of the precautions set out in this Agreement and with no less protection and care than it customarily uses in preserving and safeguarding its own confidential information.
- 3.3 The Receiving Party agrees that it shall keep the Confidential Information of the Disclosing Party confidential in accordance with the terms of this Agreement subject to the exceptions in clause 3.4 below, and the permitted disclosures in clause 3.5 below.
- 3.4 This Agreement shall not apply to Confidential Information which:
 - 3.4.1 is in or enters the public domain other than as a result of a breach of an obligation by the Receiving Party under this Agreement; or
 - 3.4.2 is or has been acquired from a third party who owes no obligation of confidence in respect of the information; or
 - 3.4.3 is or has been independently developed by the Receiving Party or was known to it prior to receipt; or
 - 3.4.4 the Disclosing Party discloses to any person or entity without confidentiality restrictions.
- 3.5 Notwithstanding clause 2.1 above, the Receiving Party may disclose any Confidential Information of the Disclosing Party in the following circumstances:
 - 3.5.1 with the prior written consent of the Disclosing Party; or
 - 3.5.2 on a need-to-know basis, internally within the Receiving Party's organization (and in the case of PwC, to other PricewaterhouseCoopers Firms or relevant subcontractors); or
 - 3.5.3 to its insurers or legal advisers in relation to any actual, potential or threatened dispute in connection with this Agreement; or
 - 3.5.4 to the extent such disclosure is required by any court of competent jurisdiction, or by a governmental or regulatory authority, or a professional body to which PwC or other PricewaterhouseCoopers Firms or their respective members or employees/staff belong, or where there is a legal duty, requirement or professional obligation to disclose provided that, where reasonably practicable (and without breaching any legal, regulatory or professional requirement) the Receiving Party gives prior prompt notice in writing to the Disclosing Party of such disclosure.

4. Term

Upon signature by both the parties, this Agreement shall come into effect from the Effective Date and shall continue in full force and effect for a term of One and half Years, subject to the Service Agreement (if any) between the parties, in relation to the Purpose, which includes obligations relating to the protection of the parties' confidential information.

5. General

- 5.1 No delay by either party in enforcing any of the terms or conditions of this Agreement shall affect or restrict that party's rights and powers arising under this Agreement. No waiver or amendment of any term or condition of this Agreement will be effective unless made in writing and signed by both parties.
- 5.2 Subject to the Service Agreement (if any), this Agreement forms the entire agreement between the parties relating to Confidential Information disclosed in connection with the Purpose and it replaces and supersedes any previous proposals, correspondence, understandings or other communications whether written or oral relating to the subject matter hereof.
- 5.3 In the assignment PwC Indonesia, hongkong, India and Bangladesh network firms will be engaged to WebTrust certification assessment with SECUPENT; helping and supporting them to conduct the assessment in favor of CCA.
- 5.4 If any provision of this Agreement is determined to be invalid in whole or in part, the remaining provisions shall continue in full force and effect as if this Agreement had been executed without the invalid provision.

6. Governing law and jurisdiction

This Agreement is governed by and shall be construed in accordance with the laws of Bangladesh. In the event of dispute, the parties shall attempt to resolve the dispute in good faith by senior level negotiations. In case, any such difference or dispute is not amicably resolved within forty five (45) days of such referral for negotiations, it shall be resolved through arbitration, in Bangladesh, in accordance with the Bangladesh Arbitration Act 2001. The venue of arbitration in Bangladesh shall be Dhaka. Subject to the foregoing provisions on alternative dispute resolution, the competent courts of Dhaka shall have jurisdiction in connection with this Agreement. Any claim for damages under this Agreement shall be restricted to direct damages only.

The parties have caused this Agreement to be executed by their duly authorized representatives, and made effective from the Effective Date first written above.

SIGNED for and on behalf of:- PricewaterhouseCoopers Bangladesh Private Limited Signature:  Name: Mamun Rashid Title: Managing Partner Bangladesh (authorized signatory) Witness: Signature: Name: Ashikur Rahman Title: Manager 	SIGNED for and on behalf of:- SECUPENT Signature:  Name: Shadman Tanjim Rahman Title: CEO and CTO Witness:  Signature: Name: Abul Kalam Title: Advisor
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